

The Rajasthan Colonisation (Special Grant of Land for House Sites to Landless Persons, Scheduled Castes, Scheduled Tribes, Artisans, Small Farmers and Marginal Farmers Rules, 1974

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The Rajasthan Colonisation (Special Grant of Land for House Sites to Landless Persons, Scheduled Castes, Scheduled Tribes, Artisans, Small Farmers and Marginal Farmers Rules, 1974

RAJASTHAN

India

The Rajasthan Colonisation (Special Grant of Land for House Sites to Landless Persons, Scheduled Castes, Scheduled Tribes, Artisans, Small Farmers and Marginal Farmers Rules, 1974

Rule

THE-RAJASTHAN-COLONISATION-SPECIAL-GRANT-OF-LAND-FOR-HOUSE-SITES-TO-LANDLESS-PERSONS-SC
HEDULED-CASTES-SCHEDULED-TRIBES-ARTISANS-SMALL-FARMERS-AND-MARGINAL-FARMERS-RULES-1974
of 1974

Published on 13 December 1974

Commenced on 13 December 1974

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The Rajasthan Colonisation (Special Grant of Land for House Sites to Landless Persons, Scheduled Castes, Scheduled Tribes, Artisans, Small Farmers and Marginal Farmers Rules, 1974

Published vide Notification No. F. 4(5) Revenue/Col./74, dated 13.12.1974 - Rajasthan Gazette, Extraordinary, Part 4-C(1), dated 13.12.1974, page 471

G.S.R. 156. - In exercise of the powers conferred by section 28 read with sub-section (1) of section 7 of the Rajasthan Colonisation Act, 1954 (Rajasthan Act

27 of 1954

), the State Government hereby makes the following rules regarding conditions on which land for house sites can be granted in Chak Abadi in the [Indira Gandhi Canal]

[Substituted for 'Rajasthan Canal' by Notification No. F. 4(12) Vidhi/84, dated 9.11.1984 - Rajasthan Gazette Extraordinary, Part IV, dated 9.11.1984, page 273 = 1984 RSCS/Part II/page 526/H. 298.]

Area under a special allotment programme for landless persons, Scheduled Castes and Scheduled Tribes families as under, namely:-

1.

Short title, extent and commencement.

(1)

These rules may be called the Rajasthan Colonisation (Special Grant of Land for House Sites to Landless Persons, Scheduled Castes, Scheduled Tribes, [Artisans, Small Farmers and Marginal Farmers]

[Inserted by Notification No. F. 4(4) Revenue/Col./76, G.S.R. 4(26), Part II, dated 15.4.1976 - Rajasthan Gazette Extraordinary, Part IV-C(I), dated 29.4.1976, page 94(118), w.e.f. 29.4.1976 = 1976 RSCS/Part II/Page 474/H. 313.]

Rules, 1974.

(2)

They shall extend to the area covered by the [Indira Gandhi Canal]

[Substituted for 'Rajasthan Canal' by Notification No. F. 4(12) Vidhi/84, dated 9.11.1984 - Rajasthan Gazette Extraordinary, Part IV, dated 9.11.1984, page 273 = 1984 RSCS/Part II/page 526/H. 298.]

Project.

(3)

They shall come into force at once upon their publication in the Official Gazette.

2.

Interpretation.

(1)

In these rules, unless the context otherwise requires-

(a)

"Allotting Authority" means any officer of the Colonisation Department to whom an area is assigned by Commissioner Colonisation for purposes of these rules.

(b)

"Chak" means a part of a village or villages which has been separately demarcated from the main village or villages for convenience of cultivation, irrigation or for any other purpose.

(c)

"Chak Abadi" means the land set apart in a chak in the [Indira Gandhi Canal]

[Substituted for 'Rajasthan Canal' by Notification No. F. 4(12) Vidhi/84, dated 9.11.1984 - Rajasthan Gazette Extraordinary, Part IV, dated 9.11.1984, page 273 = 1984 RSCS/Part II/page 526/H. 298.]

Project area for purpose of habitation.

(cc)

["Colonisation Commissioner" means an officer appointed by the State Government as such and shall include any other officer appointed by it to exercise the powers and perform the functions of the Colonisation Commissioner.]

[Inserted by Notification No. F. 4(4) Revenue/Col./76, G.S.R. 4(26), Part II, dated 15.4.1976 - Rajasthan Gazette Extraordinary, Part IV-C(I), dated 29.4.1976, page 94(118), w.e.f. 29.4.1976 = 1976 RSCS/Part II/Page 474/H. 313.]

(d)

"Family" means a person, his wife, dependent children and parents provided that a major and married son living with [x x x]

[The word 'the' Deleted by Notification No. F. 4(4) Revenue/Col./76, G.S.R. 4(26), Part II, dated 15.4.1976 - Rajasthan Gazette Extraordinary, Part IV-C(I), dated 29.4.1976, page 94(118), w.e.f. 29.4.1976 = 1976 RSCS/Part II/Page 474/H.

313.]

his parents in a Scheduled Caste or a Scheduled Tribe family shall be treated as a separate family.

(e)

"Landless Person" means a person who is dependent on agriculture and who does not own any land or any house or house site.

(f)

"Plot" means a plot of land marked out for allotment [for]

[Substituted for 'of' by Notification No. F. 4(4) Revenue/Col./76, G.S.R. 4(26), Part II, dated 15.4.1976 - Rajasthan Gazette Extraordinary, Part IV-C(I), dated 29.4.1976, page 94(118), w.e.f. 29.4.1976 = 1976 RSCS/Part II/Page 474/H.

313.]

house site.

(g)

"Tehsildar Colonisation" includes a Naib Tehsildar Colonisation wherever the work of a Tehsildar has been assigned to him in a particular area by Commissioner, Colonisation.

(2)

All other expressions used in these rules shall, unless there is something to the contrary in the subject or context, bear the meaning if any, assigned to them in the Rajasthan Colonisation (General Colony) Condition, 1955.

3.

Eligibility for allotment.

- The following categories shall be eligible for allotment:-

(1)

Landless persons;

(2)

Scheduled Castes;

(3)

Scheduled Tribes;

(4)

[Artisans;

[Inserted by Notification No. F. 4(5) Revenue/Col./74, Part II, dated 9.10.1975 - Rajasthan Gazette, Extraordinary, Part II-C(I), dated 16.10.1975, page 530(117), w.e.f. 16.10.1975..]

(5)

Small farmers; and

(6)

Marginal farmers:]

Provided that such a person seeking allotment should be a bonafide resident of Rajasthan since before the 1st day of April, and who does not own any house or house site in an abadi or agricultural land any where in Rajasthan in his own name or in the name of any member of his family.

Explanation. - For the purpose of this Rule 'small farmers' or 'Marginal farmers shall have the same meaning as assigned to them by section 2 of the Rajasthan Scheduled Debtors (Moratorium on Debts) Ordinance, 1975 (Rajasthan Ordinance No. 21 of 1975).

3A.

[

[Deleted by Notification No. F. 4(3) Revenue/Col./77, G.S.R. 237, dated 9.3.1977 - Rajasthan Gazette Extraordinary Part IV-C(I), dated 24.3.1977, page 347, w.e.f. 24.3.1977 = 1977 RSCS/Part II/Page 108/H. 107.]

x x x]

4.

Land available for allotment.

- The plots shall be allotted in a existing Chak Abadi and where no Abadi land is available or land available is insufficient or unsuitable, Government unoccupied agriculture land preferably uncommand land can be converted into Abadi, to the extent necessary. An Abadi plan of the land so converted may be approved by Colony Tehsildar.

5.

Procedure for allotment.

- The Allotting Authority shall visit the villages assigned to him, identify the eligible persons, receive applications and after necessary scrutiny pass allotment orders in Mazma Am.

6.

Declaration.

- The applicant shall also sign a declaration on the application that he has no house or house site of his own any where in Rajasthan in his own name or in the name of any member of his family. A Landless Person shall also sign a declaration that he has no agricultural land of his own.

7.

Conditions of allotment.

- A plot of 150 sq. yds. [shall]

[Substituted by 'will' by Notification No. F. 4(4) Revenue/Col./76, G.S.R. 4(26), Part II, dated 15.4.1976 - Rajasthan Gazette Extraordinary, Part IV-C(I), dated 29.4.1976, page 94(118), w.e.f. 29.4.1976 = 1976 RSCS/Part II/Page 474/H. 313.]

be allotted free of charge.

(b)

The allottee [shall]

[Substituted by 'will' by Notification No. F. 4(4) Revenue/Col./76, G.S.R. 4(26), Part II, dated 15.4.1976 - Rajasthan Gazette Extraordinary, Part IV-C(I), dated 29.4.1976, page 94(118), w.e.f. 29.4.1976 = 1976 RSCS/Part II/Page 474/H. 313.]

enjoy an inalienable right except to mortgage the same to Housing Cooperative Society, a Scheduled Bank or any other public institution for securing loans for construction of a house on the said land.

8.

Repeal and Savings.

- Notwithstanding anything contained in the Rajasthan Colonisation (Special Grant of Land for Residence in Chak Abadi in Rajasthan Canal Area) Rules, 1971, provisions of these rules shall apply for allotment of land for house sites to the landless persons, Scheduled Castes, Scheduled Tribes, [Artisans, Small Farmers and Marginal Farmers]

[Inserted by Notification No. F. 4(4) Revenue/Col./76, G.S.R. 4(26), Part II, dated 15.4.1976 - Rajasthan Gazette Extraordinary, Part IV-C(I), dated 29.4.1976, page 94(118), w.e.f. 29.4.1976 = 1976 RSCS/Part II/Page 474/H. 313.]

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